(4)

Supreme Court
FILED
DEC 3 1996
CLERK

NO. 96-79

In the Supreme Court of the United States

OCTOBER TERM 1996

SANDRA JEAN DALE BOGGS,
Petitioner

VERSUS

THOMAS F. BOGGS, HARRY M. BOGGS,
AND DAVID B. BOGGS,
Respondents

ON WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

JOINT APPENDIX

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*Counsel of Record

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And David B. Boggs

THOMAS F. BOGGS, Pro se
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PETITION FOR CERTIORARI FILED JULY 11, 1996
CERTIORARI GRANTED NOVEMBER 1, 1996

A B Letter Service, Inc., 327 Chartres St., New Orleans, La. (504) 581-5555

33 pp

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UNITED STATES COURT OF APPEALS
FOR THE FIFTH CIRCUIT

Filed
APR 17 1996

No. 94-30178

D. C. Docket No. CA-92-4174-D

SANDRA JEAN DALE BOGGS,
Plaintiff-Appellant,

Versus

THOMAS F. BOGGS, HARRY P. BOGGS,
AND DAVID B. BOGGS,
Defendants-Appellees.

Appeal from the United States District Court for the
Eastern District of Louisiana, New Orleans

Before WISDOM, KING, and DUHE', Circuit Judges.

J U D G M E N T

This cause came on to be heard on the record on appeal and was argued by counsel.

ON CONSIDERATION WHEREOF, It is now here ordered and adjudged by this Court that the judgment in this cause is affirmed.

IT IS FURTHER ORDERED that plaintiff-appellant pay to defendants-appellees the costs on appeal to be taxed by the Clerk of this Court.

KING, Circuit Judge, dissents:

ISSUED AS MANDATE: Aug 2, 1996

A True Copy
Test
Clerk, U.S. Court of Appeals,
Fifth Circuit

/s/ By C.M. Broadhead
Deputy
New Orleans, Louisiana
Aug 2 1996

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

Filed
MAR 10 1994

SANDRA JEAN BOGGS	*	CIVIL ACTION
	*	
VERSUS	*	NO. 92-4174
	*	
THOMAS F. BOGGS, ET AL	*	SECTION "D" (3)

JUDGMENT

For the reasons set out in this court's Minute Entry dated March 9, 1994;

IT IS ORDERED, ADJUDGED, AND DECREED that Judgment be entered herein in favor of Defendants, Thomas Frank Boggs, Harry Maurice Boggs, and David Bruce Boggs, and against Plaintiff, Sandra Jean Boggs, DECLARING that ERISA, 29 U.S.C. § 1001 *et seq.*, does not preempt Louisiana's community property law.

New Orleans, Louisiana, this 9th day of March, 1994.

/s/ illegible
UNITED STATES
DISTRICT JUDGE

DATE OF ENTRY MAR 10, 1994

U.S. District Court
USDC for the Eastern District of Louisiana (New Orleans)
CIVIL DOCKET FOR CASE #: 92-CV-4174
Filed: 12/17/92

Boggs v. Boggs, et al
Assigned to: Judge A.J. McNamara
Demand: $0,000 Nature of Suit: 791
Lead Docket: None Jurisdiction: Federal Question
Dkt# in other court: None

Cause: 28:2201 Declaratory Judgement

SANDRA J. BOGGS plaintiff	James Frederick Willeford (504) 582-1280 [COR LD NTC] Attorney at Law 201 St. Charles Ave. Suite 3701 - Place St. Charles New Orleans, LA 70170-3701 (504) 582-1280
	Marian Mysing Livaudais [COR NTC] Livaudais & Livaudais 3500 Hwy. 22 First Bank Place, Suite 200 Mandeville, LA 70448 (504) 626-1144

v.

Thomas F. Boggs defendant	Jimmy N. Dimos [term 04/02/93] (318) 388-4303 [COR LD] Dimos, Brown, et al 1216 Stubbs Ave. P. O. Drawer 2837 Monroe, LA 71207 (318) 388-4303
	Thomas F. Boggs [COR LD NTC] [PRO SE] Route 4. 229 Westlake Monroe, LA 71203 (318) 665-4448
HARRY P. BOGGS defendant	Guy L. Deano, Jr. (504) 626-1001 [COR LD NTC] Deano & Deano 895 Park Ave. P. O. Box 1210 Mandeville, LA 70470 (504) 626-1001
DAVID B BOGGS defendant	Guy L. Deano, Jr. (See above) [COR LD NTC]

MONDAY, OCTOBER 13, 1993 9:00AM
NON JURY TRIAL:
Trial taken on Briefs:

DATE OF ENTRY OCT 22 1993

MINUTE ENTRY
McNAMARA, J.
SEPTEMBER 28, 1993

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

Filed
SEP 28 1993

SANDRA DEAN DALE BOGGS	*	CIVIL ACTION
	*	
VERSUS	*	NO. 92-4174
	*	
THOMAS F. BOGGS, ET AL	*	SECTION "D" (3)

On this date, the court held a telephone conference in the above captioned matter with the following persons: Attorneys James Willeford and Marian Livaudais represented Plaintiff, Sandra Boggs; Defendants, Harry and David Boggs, were represented by Guy Deano, Jr.; and Thomas Boggs, Defendant, appeared pro se.

All parties informed the court that this matter will be tried with stipulated facts and that they will submit a joint stipulation of facts, signed by all parties, to the court by October 13, 1993. All parties further agreed that any additional motions and/or memoranda shall also be filed by October 13, 1993, whereon the court will take the matter under advisement and try same with stipulated facts.

* * * * * *

DATE OF ENTRY SEP 28 1993

MINUTE ENTRY
McNAMARA, J.
SEPTEMBER 3, 1993

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

Filed
SEP 3 1993

SANDRA DEAN DALE BOGGS	*	CIVIL ACTION
	*	
VERSUS	*	NO. 92-4174
	*	
THOMAS F. BOGGS, ET AL	*	SECTION "D" (3)

All Parties are hereby advised of the following:

(1) There will be a telephone conference in this matter between the court and counsel for all Parties and any Party who is proceeding in Proper Person on Tuesday, September 28, 1993 at 10:30 a.m..

(2) The Pre-Trial Conference scheduled for Monday, October 4, 1993 has been moved to Wednesday, October 13, 1993 at 10:30 a.m..

(3) Plaintiff's Motion for Summary Judgment will be heard on Wednesday, October 6, 1993 at 9:00 a.m., AND

(4) All oppositions to Plaintiff's Motion for Summary Judgment must be received by this court before noon on Friday, October 1, 1993.

* * * * * *

DATE OF ENTRY SEP 3 1993

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

Filed
APR 2 1993

SANDRA DEAN DALE BOGGS	CIVIL ACTION
VERSUS	NO. 92-4174
THOMAS F. BOGGS, HARRY T. BOGGS AND DAVID B. BOGGS	SECTION "D"
	MAGISTRATE DIVISION 3

JOINT MOTION FOR WITHDRAWAL OF COUNSEL

The joint motion of **THOMAS F. BOGGS,** a defendant in the above entitled and numbered cause, and his attorney, **J. N. Dimos,** and on suggesting to the Court that Thomas F. Boggs no longer desires to have J. N. Dimos represent him and that he desires to represent himself, and that he has been furnished with all information concerning deadlines and pending court appearances, as well as a copy of the pretrial order dated February 18, 1993, the attached pretrial notice; that he receives correspondence at Route 4, 229 Westlake, Monroe, LA 71203; and may be called on the telephone at 318/665-4448 or 318/388-8474; and, accordingly, movers desire that this Court issue an order allowing J. N. Dimos to withdraw from this matter, and that the clerk make an entry in the record showing that Thomas F. Boggs will hereinafter represent himself.

Respectfully submitted,

DIMOS, BROWN, ERSKINE & BURKETT
1216 Stubbs Avenue
Monroe, LA 71201
318/388-4303

/s/ J.N. Dimos
J. N. Dimos

/s/ Thomas F. Boggs
Thomas F. Boggs, In Proper Person

DATE OF ENTRY APR 6 1993

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

SANDRA DEAN DALE BOGGS	**CIVIL ACTION**
VERSUS	**NO. 92-4174**
THOMAS F. BOGGS, HARRY T. BOGGS AND DAVID B. BOGGS	**SECTION "D"**
	MAGISTRATE DIVISION 3

ORDER

Considering the above and foregoing Motion:

IT IS ORDERED that **J. N. DIMOS** is hereby allowed to withdraw from the above entitled and numbered matter as counsel for Thomas F. Boggs, and that the Clerk of Court make an entry in the record showing that **THOMAS F. BOGGS** will hereinafter represent himself and may receive correspondence and telephone calls as shown in the foregoing motion.

New Orleans, Louisiana, this 5th day of April, 1993.

/s/ illegible
JUDGE

CERTIFICATE OF SERVICE

I hereby certify that a copy of the above and foregoing Joint Motion for Withdrawal of Counsel and accompanying Order were served on all counsel of record in this proceeding by placing same in the United States mail, postage prepaid and properly addressed to each at their respective addresses.

Monroe, Louisiana, this 22nd day of March, 1993.

/s/ J. N. Dimos
J. N. Dimos

MINUTE ENTRY
McNAMARA, J.
FEBRUARY 18, 1993

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

Filed
2-18-93

SANDRA BOGGS	*	CIVIL ACTION
VERSUS	*	NO. 92-4174
THOMAS BOGGS, ET AL	*	SECTION "D"

A Preliminary Conference was held by Telephone in the above captioned matter on this date.

PRESENT: JAMES WILLEFORD, ATTORNEY FOR PLAINTIFF
DAVID BURKETT, GUY DEANO, JR., ATTORNEY FOR DEFENDANT

Jurisdiction and venue are established.

Amendments to pleadings, counterclaims, cross-claims and third party complaints will be filed within 30 days. This provision sets deadlines only. you must seek leave of court if required by rule.

Pleadings responsive thereto, when required, shall be filed within the applicable delays therefor.

Counsel adding new parties subsequent to mailing of this Notice shall serve on each new party a copy of this Minute Entry.

DATE OF ENTRY FEB 18 1993

Written reports of experts who may be witnesses for Plaintiff shall be obtained and delivered to counsel for Defendant as soon as possible, but in no event later than 90 days prior to Pre-Trial Conference date.

Written reports of experts who may be witnesses for Defendant shall be obtained and delivered to counsel for Plaintiff as soon as possible, but in no event later than 60 days prior to Pre-Trial Conference date.

Counsel for all parties shall file in the record and serve upon their opponents a list of all witnesses who may or will be called to testify at trial not later than 60 days prior to Pre-trial Conference date.

All discovery and any deposition taken for the purpose of perpetuation shall be completed not less than 30 days proir to Pre-Trial Conference date.

The court will not permit any witness, expert or fact, to testify unless there has been compliance with this Order as it pertains to the witness.

All pre-trial motions will be filed so as to be noticed for a Motion day not less than 30 days prior to the date fixed for the Pre-Trial Conference.

A final Pre-Trial Conference will be held before the District Judge on *MONDAY, OCTOBER 4, 1993 AT 1:15 PM,* The Pre-Trial Order, *in duplicate,* must be delivered to the Court's Chambers by 4:30 p.m. on a day that allows one full work day prior to the Conference, excluding Saturdays, Sundays, and holidays (i.e., if the Conference is set for

10:00 a.m. Friday, it must be delivered by 4:30 p.m. Wednesday. If the Conference is set on Monday, the Pre-Trail Order will be delivered to the Judge on Thursday by 4:30 p.m.). *All Pre-Trial Orders must bear the signatures of all counsel at the time they are so submitted.*

Trial will commence during the week beginning *MONDAY, OCTOBER 18, 1993 AT 9:00 AM,* before the District Judge *WITHOUT* a jury. Attorneys are instructed to report for Trial *not later than 30 minutes prior to this time.* The starting time on the first day of a jury trial may be delayed or moved up one hour because of jury pooling. Trial is estimated to last *ONE* day(s). Deadlines or cutoff dates fixed herein may only be extended by the Court upon timely application and upon a showing of good cause.

* * * * *

/s/ illegible

MINUTE ENTRY
McNAMARA, J.
FEBRUARY 3, 1993

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

Filed
FEB 3 1993

SANDRA DEAN DALE BOGGS	*	CIVIL ACTION
	*	
VERSUS	*	NO. 92-4174
	*	
THOMAS F. BOGGS, HARRY P. BOGGS and DAVID B. BOGGS	*	SECTION "D" (3)

Before the court is the Motion of Defendants to Dismiss for Lack of Jurisdiction. Plaintiff has filed an opposition. The matter is before the court on briefs, without oral argument.

Defendants argue that this court lacks subject matter jurisdiction over the declaratory judgment action brought by Plaintiff. They deny that the matter involves an interpretation of the Employee Retirement Income Security Act of 1974 (ERISA). This court finds, however, that the scope of ERISA is at the heart of this matter. Accordingly;

IT IS ORDERED that the Motion to Dismiss for Lack of Jurisdiction be DENIED.

/s/ illegible

DATE OF ENTRY FEB 3 1993

APPEAL TERMED
MAG-3

U. S. District Court
USDC for the Eastern District of Louisiana (New Orleans)
CIVIL DOCKET FOR CASE #: 92-CV-4174

Boggs v. Boggs, et al Filed:12/17/92
Assigned to: Judge A.J. McNamara
Demand: $0,000 Nature of Suit: 791
Lead Docket: None Jurisdiction: Federal Question
Dkt# in other court: None

Cause: 28:2201 Declaratory Judgment

SANDRA JEAN BOGGS
plaintiff

James Frederick Willeford
(504) 582-1280
[COR LD NTC]
Attorney at Law
201 St. Charles Ave.
Suite 3701 - Place St. Charles
New Orleans, LA 70170-3701
(504) 582-1280

Marian Mysing Livaudais
[COR NTC]
Livaudais & Livaudais
3500 Hwy. 22
First Bank Place, Suite 200
Mandeville, LA 70448
(504) 626-1144

v.

Thomas F. Boggs
defendant

Jimmy N. Dimos
[term 04/02/93]
(318) 388-4303
[COR LD]
Dimos, Brown, et al
1216 Stubbs Ave.
P. O. Drawer 2837
Monroe, LA 71207
(318) 388-4303

Thomas F. Boggs
[COR LD NTC] [PRO SE]
Route 4, 229 Westlake
Monroe, LA 71203
(318) 665-4448

HARRY P. BOGGS
defendant

Guy L. Deano, Jr.
(504) 626-1001
[COR LD NTC]
Deano & Deano
895 Park Ave.
P. O. Box 1210
Mandeville, LA 70470
(504) 626-1001

DAVID B BOGGS
defendant

Guy L. Deano, Jr.
(See above)
[COR LD NTC]

Docket as of April 11, 1994 2:03 pm

April 11, 1994

Proceedings include all events. APPEAL
2:92cv4174 Boggs v Boggs, et al TERMED MAG-3

Sandra Jean Boggs
Plaintiff

v.

Thomas F. Boggs; Harry P Boggs; David B Boggs
defendant

12/17/92 1 COMPLAINT (3 summons(es) issued) (msm)

12/17/92 — Payment of filing fee by plaintiff Sandra Jean Boggs in amount of $ 120.00 (msm)

12/23/92 2 Ntc & ack of RETURN OF SERVICE of S&C executed upon defendant Harry P Boggs on 12/21/92 (js)
[Entry date 12/24/92]

12/28/92 3 RETURN OF SERVICE/NTC OF ACKNOWLEDGEMENT of S & C executed upon defendant David B Boggs on 12/24/92 (rg)

1/11/93 4 ANSWER by defendant Thomas F Boggs to orig complaint by plaintiff Sandra Jean Boggs [1-1] (js)

1/11/93 5 Ntc & acknowledgment for RETURN OF SERVICE of S&C executed upon defendant Thomas F Boggs on 12/23/92 (js)

1/13/93 6 ANSWER by defendants Harry P Boggs & David B Boggs to orig complaint by paintiff Sandra Jean Boggs [1-1] (js)

1/13/93 7 MOTION by defendants Harry P Boggs & David B Boggs to dismiss for lack of jurisdiction. To be heard before Judge at 9:00 2/3/93 (js)

1/25/93 8 Memo in opposition by plaintiff Sandra Jean Boggs to motion to dismiss for lack of jurisdiction [7-1] filed by defendants Harry P Boggs & David B Boggs (js)

2/3/93 9 MINUTE ENTRY (2/3/93): ORDER denying the motion of dfts Harry Boggs & David Boggs to dismiss for lack of jurisdiction. [7-1] by Judge A. J. McNamara (js)

2/4/93 10 NOTICE that a preliminary conference is scheduled before Courtroom Deputy by phone at 11:15 2/18/93 (js)

2/18/93 11 MINUTE ENTRY (2/18/93): Preliminary Conference held this date. Amendments due w/in 30 days. Final pretrial conf is set for 1:15 10/4/93 & non-jury trial is set for 9:00 10/18/93. by Judge A.J. McNamara (js)

4/2/93 12 Motion by defendant Thomas F Boggs and ORDER withdrawing attorney Jimmy N. Dimos as counsel of record. by Judge A. J. McNamara Date Signed: 4/5/93 (js) [Entry date 04/06/93]

8/3/93 13 Exhibit list by plaintiff Sandra Jean Boggs (js)

8/3/93 14 Witness list submitted by plaintiff Sandra Jean Boggs (js)

8/6/93 15 Request by plaintiff Sandra Jean Boggs for admissions (first set) (js) [Entry date 08/09/93]

8/27/93 16 MOTION by plaintiff Sandra Jean Boggs for summary judgment To be heard before Judge at 9:00 9/15/93 (js)

9/3/93 17 MINUTE ENTRY (9/3/93): ORDERED that a Status Conf by phone w/Judge will be held 10:30 9/28/93. Further the Pre-Trial Conference is moved to 9:00 10/6/93. Pla's motion for summary judgment [16-1] is cont to 9:00 10/6/93 & opps to this mtn is due by 10/1/93 12:00noon. by Judge A.J. McNamara (js)

9/28/93 18 MINUTE ENTRY (9/28/93): Status Conf w/Judge held this date. All ptys informed Court that this matter will be tried w/stipulated facts & they will submit a joint stip of facts by 10/13/93. All ptys further agreed that any addl mtns or memos shall be filed by 10/13/93 & Court will take matter under advisement & try same w/stip facts. by Judge A. J. McNamara (js)

10/8/93 19 Memorandum by defendant Harry P Boggs, defendant David B Boggs in support M.E. re Status Conf w/Judge held w/Judge. Stipulation of facts. addl mtns or memos shall be filed by 10/13/93 & Court will take matter under advise-

ment & try same w/stip facts. [18-1], of minute entry [18-2] (rg)

10/13/93 20 Reply Memorandum by plaintiff Sandra Jean Boggs in support of her motion for summary judgment [16-1] (js)

10/13/93 21 Stipulation of facts by plaintiff Sandra Jean Boggs (js)

10/13/93 22 PROCEEDING: Non-jury trial Case decision taken under advisement. by Judge A.J. McNamara (js)
[Entry date 10/22/93]

3/10/94 23 MINUTE ENTRY (3/9/94): ORDER denying pla's motion for summary judgment [16-1] which seeks a declaration that ERISA preempts LA community prop laws. Further that jgm be rendered in favor of dfts' declaring that ERISA does not preempt LA community prop laws. by Judge A.J. McNamara (js)

3/10/94 24 JUDGMENT: In favor of dfts' & agst pla declaring that ERISA does not preempt LA community prop law. by Judge A. J. McNamara Date signed: 3/9/94 (CASE CLOSED) (js)

Proceedings include all events. APPEAL
2:92cv4174 Boggs v. Boggs, et al TERMED MAG-3

3/22/94 25 Notice of appeal by plaintiff Sandra Jean Boggs from Dist. Court decision entered 3/10/94. (js)

3/24/94 — Payment of appeal fee by plaintiff Sandra Jean Boggs in amount of $ 105.00 (js) [Entry date 03/25/94]

4/1/94 26 Transcript order by appellant Sandra Jean Boggs - not necessary for appeal purposes. (js) [Entry date 04/05/94]

Docket as of April 11, 1994 2:03 pm

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

Filed
MAR 22 1994

SANDRA JEAN DALE BOGGS	*	CIVIL ACTION
VERSUS	*	NO. 92-4174
THOMAS F. BOGGS, ET AL	*	SECTION "D" (3)

* * * * * * * * * * *

NOTICE OF APPEAL

Notice is hereby given that Sandra Jean Dale Boggs, plaintiff above named, hereby appeals to the Court of Appeals for the Fifth Circuit from the Minute Entry of March 9, 1994 and final Judgment entered in this action on March 10, 1994.

Respectfully submitted,

LIVAUDAIS & LIVAUDAIS

/s/ Marian M. Livaudais

MARIAN M. LIVAUDAIS (SCBR #8636)
Attorney for Plaintiff
Suite 200, First Bank Place
3500 Highway 190
Mandeville, Louisiana 70448
Telephone (504) 626 1144

CERTIFICATE OF SERVICE

I hereby certify that a copy of the above and foregoing Notice of Appeal has been duly served upon all counsel of record by depositing a copy of the same in the United States Mail, properly addressed, postage prepaid, this 18th day of March, 1994.

/s/ Marian M. Livaudais

MARIAN M. LIVAUDAIS

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA

Filed
OCT 13 1993

SANDRA JEAN DALE BOGGS	*	CIVIL ACTION
VERSUS	*	NO. 92-4174
THOMAS F. BOGGS, HARRY P. BOGGS and DAVID B. BOGGS	*	SECTION "D"
	*	MAG. DIV. 3

STIPULATION OF FACTS

The parties hereto stipulate to the following facts:

1. Isaac E. Boggs, Jr. died February 16, 1989 leaving a Last Will and Testament.

2. He is survived by his widow, Sandra Jean Dale Boggs, the plaintiff in this matter, and three sons, Thomas Frank Boggs, Harry Maurice Boggs, and David Bruce Boggs, the defendants in this case.

3. His succession was opened under No. 89-30055 of the 22nd Judicial District Court for the Parish of St. Tammany, State of Louisiana, and Sandra Jean Dale Boggs was confirmed as Testamentary Executrix in that proceeding.

4. Isaac E. Boggs, Jr. was married first to Dorothy McDonald Boggs, who died on August 14, 1979.

5. Under Dorothy Boggs' will, Isaac E. Boggs, Jr. was left one-third of her estate and the lifetime usufruct of the remaining two-thirds of her estate which was inherited by her three children, Thomas Frank Boggs, Harry Maurice Boggs and David Bruce Boggs.

6. Dorothy Boggs' succession was opened under No. 8627 of the 22nd Judicial District Court for the Parish of St. Tammany, State of Louisiana, and a Judgment of Possession was signed on February 5, 1980.

7. The Sworn Descriptive List of asserts filed in Dorothy Boggs' succession included the Bell Systems Savings Plan for Salaried Employees with a value of $42,388.57 at the time of her death; Dorothy's one-half interest was valued at $21,194.29. Bell Systems provided the value of the Savings Plan as of Dorothy Boggs' death.

8. Isaac E. Boggs, Jr. married Sandra Jean Dale Boggs on April 5, 1980, and no children were born of their marriage.

9. Isaac E. Boggs, Jr. was employed by South Central Bell Tel & Tel from June 18, 1949 until September 1, 1985, when he retired or a period of thirty-six years and two months.

10. He was married to Dorothy McDonald Boggs from the date of his employment on June 18, 1949 until her death on August 14, 1979.

11. Upon his retirement he received the sum of $151,628.94 which was the distribution from the BellSouth Management Savings Plan, (formerly called BellSouth Systems Savings Plan for Salaried Employees) and all of these funds were "rolled over" into an IRA account at Delaware Charter Guarantee Trust Co.

12. He made no withdrawals from the IRA account prior to his death. At the date of his death this account was $180,778.05.

13. In addition to the distribution from the Savings Plan, he received monthly retirement payments from September 1, 1985 through the date of his death on February 16, 1989 in the amount of $1,777.67 per month.

14. Thereafter the survivor's lifetime annuity pension has been paid to his widow, Sandra Jean Dale Boggs, and she was named as the beneficiary of the IRA plan.

15. Under the terms of the BellSouth ESOP, Isaac Boggs acquired 96 shares in AT&T which were distributed to him when he retired.

16. In addition, the Plan included life insurance policies payable to Sandra Jean Dale Boggs as the named beneficiary.

17. The BellSouth Management Savings Plan, the ESOP Plan and all retirement benefits and employee benefit plans of South Central Bell Tel. & Tel are qualified plans subject to the provisions of The Employee Retirement Income Security Act of 1974 and The Retirement Equity Act of 1984.

18. The IRA account at Delaware is a qualified Individual Retirement Account under IRC Section 401, et seq.

19. Two of the defendants herein, Harry and David Boggs, have filed an action in the 22nd Judicial District Court for the Parish of St. Tammany, State of Louisiana, No. 92-14434, claiming that they are entitled to the following:

a. An accounting of the usufruct enjoyed by Isaac E. Boggs, Jr. over that portion of the retirement payments attributable to Dorothy Boggs' community interest in the retirement plan; payment of a percentage of the pension plan payments from September 1, 1995 through February 16, 1989.

b. A percentage of the survivor's annuity payable to Sandra Jean Dale Boggs from February, 1989, until her death.

c. A percentage of the IRA account which was created in the "roll over" of Isaac E. Boggs, Jr.'s distribution of the BellSouth Management Savings Plan, based on Dorothy Boggs' community interest in those funds.

d. A portion of the ESOP shares of AT&T stock.

20. On December 17, 1992, the Plaintiff filed her Petition for Declaratory Judgment in the captioned proceedings for the purpose of resolving the issue of whether ERISA preempts the application of Louisiana's community property and succession laws to the assets of, or the benefits payable under the Plan and/or the IRA.

Dated this 13 day of October, 1993.

/s/ James F. Willeford

JAMES F. WILLEFORD, T.A.
SCBR #13485
Attorney for Sandra Dale Boggs
201 St. Charles Ave., Ste. 3912
New Orleans, Louisiana 70170-3912
Telephone: (504) 582-1286

/s/ Guy L. Deano, Jr.

GUY L. DEANO, JR.
Attorney for Harry M. Boggs
and David B. Boggs
Bar Roll #4771
895 Park Avenue
Mandeville, Louisiana 70448
(504) 626-1001

/s/ Thomas F. Boggs

THOMAS F. BOGGS
IN PROPER PERSON
Route 4, Box 229 West Lake Drive
Monroe, Louisiana 70123

STIPULATION OF FACTS AND DOCUMENTS

Facts and documents to which the parties stipulate authenticity are listed as follows:

EXHIBITS:

A. Last Will and Testament of Isaac E. Boggs, Jr.

B. Letters Testamentary issued to Sandra Jean Dale Boggs.

C. Last Will and Testament of Dorothy McDonald Boggs.

D. Judgment of Possession filed in the Succession of Dorothy McDonald Boggs.

E. Sworn Descriptive List filed in the Succession of Dorothy McDonald Boggs.

F-1. Your Personal Statement of Benefits 1985 - South Central Bell.

F-2. BellSouth Management Pension Plan.

G. BellSouth Managment Plan Distribution and IRA information.

H. Pension Computation Sheet.

I. BellSouth ESOP information.

J-1. Petition for a Declaratory Judgment.

J-2. Amended Petiton for a Declaratory Judgment.

NOTE: Attachments to the Stipulation of Facts and Documents listed above can be found at Pages 50 through 73 of the Record